MEASURE C

1/2% TRANSACTIONS AND USE (SALES) TAX

To maintain Rocklin's public safety, financial stability and core public services, including: rapid 911 emergency/ medical response; police/ fire protection; keeping public areas and parks healthy/ safe/ clean; preserving open space; preventing wildfires; shall the City of Rocklin's measure establishing a half-cent sales tax, providing approximately $8 million annually for general revenue purposes, until ended by voters, keeping all funds local, with annual audits/ public spending disclosure, be adopted?

YES ____ NO ____

CITY ATTORNEY'S IMPARTIAL ANALYSIS OF MEASURE C

On June 9, 2026, the City Council voted unanimously to place Measure "C" on the November 3, 2026 General Municipal Election ballot.

If approved by a majority of Rocklin voters, this Measure would authorize a one-half percent (1/2%) retail transactions and use (sales) tax within the City of Rocklin. A one-half percent (1/2%) rate equates to an extra 50¢ per $100 purchased. It is estimated that Measure "C" will provide an additional $8,000,000 in annual local funding that could be used for maintaining general City services such as 911 emergency/medical response, police/fire protection services, cleaning and maintaining public areas and parks, maintaining and improving open space; and wildfire prevention programs. This tax would be a "general tax," meaning that revenues raised from the tax would go into the City's general fund to pay for any lawful City program, improvement, or service.

The California Constitution (Proposition 218) and Revenue and Taxation Code section 7285.9 authorize the City to levy a general transactions and use/sales tax at a rate of one-half percent (1/2%) so long as the tax is approved by a majority of the voters voting in an election on that issue.

If approved, the tax would become operative on April 1, 2027 and remain in effect until repealed by voters at a subsequent election.

The tax would be paid in addition to current sales taxes and would be collected at the same time and in the same manner as existing sales taxes. All revenues raised by the tax would remain in the City and would not be shared with the State, County or any other agency.

A "yes" vote on Measure "C" will authorize the 1/2% transactions and use (sales) tax.

A "no" vote on Measure "C" will not authorize the 1/2% transactions and use (sales) tax.

The above statement is an impartial analysis of Measure "C". If you desire a copy of the Measure, please call the City's Clerk's Office at (916) 625-5560 or email cityclerk@rocklin.ca.us and a copy will be sent at no cost to you.

/s/ MATTHEW McOMBER
City Attorney

ARGUMENT IN FAVOR OF MEASURE C

Invest in Rocklin - VOTE YES on Measure C to maintain our safe community, family-friendly, small-town character, and outstanding quality of life.

Rocklin is recognized for its safe neighborhoods, beautiful parks, outstanding emergency services, rapid 911 response times and its strong fiscal management. However, due to inflation and other external impacts, long-term financial forecasts show the City will not have necessary funds to maintain the quality of life we all enjoy.

Measure C provides a prudent, responsible solution that protects what matters to Rocklin residents: safe neighborhoods, rapid emergency response, clean, inviting parks for all to enjoy, economic prosperity, strong property values, *and a vibrant future for our city*.

Passage of Measure C will:

- **Keep** public areas and parks healthy, safe and clean
- **Maintain** rapid 911 emergency response times
- **Maintain** fire protection and police response services
- **Retain/attract** qualified firefighters and emergency first responders
- **Maintain the City's financial stability**

Taxpayer Protections are MANDATORY! ALL funds stay LOCALLY CONTROLLED, benefiting City of Rocklin residents ONLY. Funds must stay local and the State cannot take funding away from Rocklin residents. Public spending and independent audits ensure local control of funds is maintained.

By law, **essential purchases like groceries and prescription medications WON'T be taxed**. Visitors to Rocklin will pay their fair share, so residents won't shoulder the entire cost.

Local firefighters, police, seniors, parents, residents, community and business leaders, urge your support. VOTING YES will maintain Rocklin's quality of life for years to come.

Your VOTE is an investment in YOUR future.

Maintain what matters. VOTE YES on C.

Signed,
Victoria (Vicki) Curtis, Retired Rocklin Nonprofit Executive
Christopher (Chris) May, Rocklin Little League Past-President
Robin Trimble, Retired Rocklin Chamber CEO
Trent Jewell, Retired Rocklin Police Captain
Chris Wade, Rocklin Firefighters
www.YesOnCForRocklin.com

NO ARGUMENT AGAINST MEASURE C WAS SUBMITTED

FULL TEXT OF MEASURE C SUBMITTED BY THE CITY OF ROCKLIN

ORDINANCE NO. 1208

ORDINANCE OF THE CITY OF ROCKLIN AMENDING ROCKLIN MUNICIPAL CODE TITLE 3 – REVENUE AND FINANCE BY ADDING CHAPTER 3.25 "2026 TRANSACTIONS AND USE TAX" BY IMPOSING A ONE-HALF PERCENT (0.50%) GENERAL TRANSACTIONS AND USE (SALES) TAX UNTIL REPEALED BY VOTERS, TO BE COLLECTED AND ADMINISTERED BY THE CALIFORNIA DEPARTMENT OF TAX AND FEE ADMINISTRATION, SUBJECT TO VOTER APPROVAL

WHEREAS, pursuant to California Revenue and Taxation Code section 7285.9 the City of Rocklin ("City") is authorized to levy a Transactions and Use (Sales) Tax for general purposes, subject to majority voter approval; and

WHEREAS, the People of the City desire to add Chapter 3.25 to Title 3 of the Rocklin Municipal Code establishing a general Transactions and Use (Sales) Tax ("TUT") until ended by voters, on the sale and/or use of all tangible personal property sold at retail in the City, at a rate of one-half percent (0.50%); and

NOW THEREFORE, the People of the City of Rocklin do ordain as follows:

Section 1. Findings. The People of the City of Rocklin find and determine that:

A. The City provides essential municipal services that contribute to the high quality of life enjoyed by residents including:
   a. Public safety;
   b. Financial stability;
   c. Rapid 911 emergency and medical response;
   d. Police and fire protection;
   e. Keeping public areas and parks healthy, safe and clean;
   f. Preserving open space;
   g. Preventing wildfires; and
   h. Other core municipal services.

B. The City has a track record of sound financial management including maintaining a AAA Bond rating through Fitch Rating, Inc. and receipt of national and state awards for budget and audit preparation.

C. Current financial projections show expenditures outpacing revenues requiring the City to think strategically about service provision in the future.

D. Consistent resident input from extensive community outreach shows that Rocklin residents love living in Rocklin, enjoy a high quality of life supported by the essential municipal services listed in section A above, and would like to see the City maintain those essential services.

E. The tax revenue generated by this measure provides local funding for local needs and cannot be taken by any other agency including the State or federal government.

F. The tax revenue generated by this measure will enable the City to maintain core municipal services, including public safety and parks services. Nothing in this measure allows tax revenue to be· directed into a special fund or for a special purpose.

G. The tax revenue generated by this measure can be spent for unrestricted general revenue purposes.

H. November 3, 2026 is the date of the statewide general election, and is the next election date eligible for inclusion of this general tax measure.

Section 2. Authority. Pursuant to California Government Code section 53724 and Revenue and Taxation Code section 7285.9, this Ordinance was duly approved for placement on the ballot by a minimum two-thirds (2/3) supermajority of all members of the City Council on _____, 2026.

Section 3. Amendment to Code. Rocklin Municipal Code Title 3 - Revenue and Finance is hereby amended by adding Chapter 3.25 "2026 Transactions and Use Tax" and shall read as follows:

CHAPTER 3.25
2026 TRANSACTIONS AND USE TAX

§ 3.25.010. Rocklin Transactions and Use Tax Ordinance.
This Chapter shall be known as the Rocklin 2026 Transactions and Use Tax Ordinance. The City of Rocklin hereinafter shall be called "City." This Chapter shall be applicable in the incorporated territory of the City.

§ 3.25.020. Operative date.
Operative Date means the first day of the first calendar quarter commencing more than one hundred ten days after the date of the election for the ordinance codified in this Chapter.

§ 3.25.030. Purpose.
The ordinance codified in this Chapter is adopted to achieve the following, among other purposes, and directs that the provisions hereof be interpreted in order to accomplish those purposes:

(a) To impose a retail transactions and use tax in accordance with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code and Section 7285.9 of Part 1.7 of Division 2 which authorizes the City to adopt this tax ordinance which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose.
(b) To adopt a retail transactions and use tax ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 of Division 2 of the Revenue and Taxation Code.
(c) To adopt a retail transactions and use tax ordinance that imposes a tax and provides a measure therefor that can be administered and collected by the

California Department of Tax and Fee Administration (hereinafter called "CDTFA") in a manner that adapts itself as fully as practicable to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the CDTFA in administering and collecting the California State sales and use taxes.

(d) To adopt a retail transactions and use tax ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, minimize the cost of collecting the transactions and use taxes, and at the same time, minimize the burden of record keeping upon persons subject to taxation under the provisions of this Chapter.

§ 3.25.040. Contract with state.
Prior to the Operative Date, the City shall contract with the CDTFA to perform all functions incident to the administration and operation of this transactions and use tax ordinance; provided, that if the City shall not have contracted with the CDTFA prior to the Operative Date, it shall nevertheless so contract and in such a case the Operative Date shall be the first day of the first calendar quarter following the execution of such a contract.

§ 3.25.050. Transactions tax rate.
For the privilege of selling tangible personal property at retail, a tax is hereby imposed upon all retailers in the incorporated territory of the City at the rate of one half of one percent (0.50%) of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on and after the Operative Date of the ordinance codified in this Chapter.

§ 3.25.060. Place of sale.
For the purposes of this Chapter, all retail sales are consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his or her agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges, when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the state or has more than one place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations to be prescribed and adopted by the CDTFA.

§ 3.25.070. Use tax rate.
An excise tax is hereby imposed on the storage, use or other consumption in the City of tangible personal property purchased from any retailer on and after the Operative Date of the ordinance codified in this Chapter for storage, use or other consumption in said territory at the rate of one half of one percent (0.50%) of the sales price of the property. The sales price shall include delivery charges when such charges are subject to state sales or use tax regardless of the place to which delivery is made.

§ 3.25.080. Adoption of provisions of state law.
Except as otherwise provided in this Chapter and except insofar as they are inconsistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, all of the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code are hereby adopted and made a part of this Chapter as though fully set forth herein.

§ 3.25.090. Limitations on adoption of state law and collection of use taxes.
In adopting the provisions of Part 1 of Division 2 of the Revenue and Taxation Code:

(a) Wherever the State of California is named or referred to as the taxing agency, the name of this City shall be substituted therefor. However, the substitution shall not be made when:
  (1) The word "State" is used as a part of the title of the State Controller, State Treasurer, California Victim Compensation Board, CDTFA, State Treasury, or the Constitution of the State of California.
  (2) The result of that substitution would require action to be taken by or against this City or any agency, officer, or employee thereof rather than by or against the CDTFA, in performing the functions incident to the administration or operation of this Chapter.
  (3) In those sections, including, but not necessarily limited to, sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to:
    (A) Provide an exemption from this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not otherwise be exempt from this tax while such sales, storage, use or other consumption remain subject to tax by the state under the provisions of Part 1 of Division 2 of the Revenue and Taxation Code; or
    (B) Impose this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not be subject to tax by the state under the said provision of that Code.

(b) In reference to Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 or 6828 of the Revenue and Taxation Code, the word "City" shall be substituted for the word "State" in the phrase "retailer engaged in business in this State" in Section 6203 and in the definition of that phrase in Section 6203.

(1) "A retailer engaged in business in the district" shall also include any retailer that, in the preceding calendar year or the current calendar year, has total combined sales of tangible personal property in this state or for delivery in the state by the retailer and all persons related to the retailer that exceeds five hundred thousand dollars ($500,000). For purposes of this section, a person is related to another person if both persons are related to each other pursuant

to Section 267(b) of Title 26 of the United States Code and the regulations thereunder.

§ 3.25.100. Additional Permit not required.
If a seller's permit has been issued to a retailer under Section 6067 of the Revenue and Taxation Code, an additional transactor's permit shall not be required by this Chapter.

§ 3.25.110. Exemptions and exclusions.

(a) There shall be excluded from the measure of the transactions tax and the use tax the amount of any sales tax or use tax imposed by the State of California or by any city, city and county, or county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law or the amount of any state-administered transactions or use tax.

(b) There are exempted from the computation of the amount of transactions tax the gross receipts from:

(1) Sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the county in which the sale is made and directly and exclusively in the use of such aircraft as common carriers of persons or property under the authority of the laws of this state, the United States, or any foreign government.

(2) Sales of property to be used outside the City which is shipped to a point outside the City, pursuant to the contract of sale, by delivery to such point by the retailer or his or her agent, or by delivery by the retailer to a carrier for shipment to a consignee at such point. For the purposes of this subsection (b)(2), delivery to a point outside the City shall be satisfied:

(A) With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, and undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code by registration to an out-of-City address and by a declaration under penalty of perjury, signed by the buyer, stating that such address is, in fact, his or her principal place of residence; and

(B) With respect to commercial vehicles, by registration to a place of business out-of-City and declaration under penalty of perjury, signed by the buyer, that the vehicle will be operated from that address.

(3) The sale of tangible personal property if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the Operative Date of the ordinance codified in this Chapter.

(4) A lease of tangible personal property which is a continuing sale of such property, for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the Operative Date of the ordinance codified in this Chapter.

(5) For the purposes of subsections (b)(3) and (b)(4) of this section, the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

(c) There are exempted from the use tax imposed by this Chapter, the storage, use or other consumption in this City of tangible personal property:

(1) The gross receipts from the sale of which have been subject to a transactions tax under any state-administered transactions and use tax ordinance.

(2) Other than fuel or petroleum products purchased by operators of aircraft and used or consumed by such operators directly and exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this state, the United States, or any foreign government. This exemption is in addition to the exemptions provided in Sections 6366 and 6366.1 of the Revenue and Taxation Code of the State of California.

(3) If the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the Operative Date of the ordinance codified in this Chapter.

(4) If the possession of, or the exercise of any right or power over, the tangible personal property arises under a lease which is a continuing purchase of such property for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease prior to the Operative Date of the ordinance codified in this Chapter.

(5) For the purposes of subsections (c)(3) and (4) of this section, storage, use, or other consumption, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

(6) Except as provided in subsection (c)(7), a retailer engaged in business in the City shall not be required to collect use tax from the purchaser of tangible personal property, unless the retailer ships or delivers the property into the City or participates within the City in making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the City or through any representative, agent,

canvasser, solicitor, subsidiary, or person in the City under the authority of the retailer.

(7) "A retailer engaged in business in the city" shall also include any retailer of any of the following: vehicles subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, or undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code. That retailer shall be required to collect use tax from any purchaser who registers or licenses the vehicle, vessel, or aircraft at an address in the City.

(d) Any person subject to use tax under this Chapter may credit against that tax any transactions tax or reimbursement for transactions tax paid to a district imposing, or retailer liable for a transactions tax pursuant to Part 1.6 of Division 2 of the Revenue and Taxation Code with respect to the sale to the person of the property the storage, use or other consumption of which is subject to the use tax.

§ 3.25.120. Amendments to State Law.
All amendments subsequent to the Effective Date of the ordinance codified in this Chapter to Part 1 of Division 2 of the Revenue and Taxation Code relating to sales and use taxes and which are not inconsistent with Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, and all amendments to Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, shall automatically become a part of this ordinance codified in this Chapter; provided, however, that no such amendment shall operate so as to affect the rate of tax imposed by this ordinance codified in this Chapter.

§ 3.25.130. Enjoining collection forbidden.
No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the state or the City, or against any officer of the state or the City, to prevent or enjoin the collection under this Chapter, or Part 1.6 of Division 2 of the Revenue and Taxation Code, of any tax or any amount of tax required to be collected.

§ 3.25.140. Severability.
If any provision of this Chapter or the application thereof to any person or circumstances is held invalid, ·the remainder of the Chapter and the application of such provisions to other persons or circumstances shall not be affected thereby and no such invalidity shall affect other provisions of applications of this Chapter, which can and shall be given effect without the invalid provision or application, and to this end, the provisions of the ordinance codified in this Chapter are severable.

§ 3.25.150. Annual review.
As part of the City's budget process, City staff shall review the tax revenues collected pursuant to the transactions and use tax imposed by this Chapter.

The revenue from the tax imposed by this Chapter, as well as the expenditure thereof, shall be subject to the annual audit performed by the City's independent auditor of the city's books, records, accounts, and fiscal procedures and which is reported in the City's Annual Comprehensive Financial Report. The audit results may be combined with the audit of other city funds.

§ 3.25.160. Duration of Tax.
The authority to levy the tax imposed by this chapter shall continue unless and until this chapter is repealed.

Section 4. Codification. Subject to the voter approval, the City Clerk, in consultation with the City Attorney, is hereby authorized and directed to codify this ordinance in the Rocklin Municipal Code.

Section 5. Effective Date and Submission to Voters. Pursuant to California Elections Code section 9217, this ordinance shall take effect ten (10) days after the City Council has determined by resolution the approval of this ordinance by a majority of the voters of the City as required by Section 2(b) of Article XIIC of the California Constitution and applicable law.

Section 6. Certification. The City Clerk shall certify the final approval of this ordinance, publish the same as required by law, and forward a certified copy of the adopted ordinance to the California Department of Tax and Fee Administration.

Section 7. Publication. Within fifteen (15) days of the passage of this ordinance, the City Clerk shall cause the full text of the ordinance, with the names of those City Council members voting for and against the ordinance, to be published in the Placer Herald. In lieu of publishing the full text of the ordinance, the City Clerk, if so directed by the City Attorney and within fifteen (15) days, shall cause a summary of the ordinance, prepared by the City Attorney and with the names of the City Council members voting for and against the ordinance, to be published in the Placer Herald, and shall post in the office of the City Clerk a certified copy of the full text of the ordinance, along with the names of those City Council members voting for and against the ordinance. The publication of a summary of the ordinance in lieu of the full text of the ordinance is authorized only where the requirements of Government Code section 36933(c)(1) are met.

INTRODUCED at a regular meeting of the City Council of the City of Rocklin held on May 26, 2026, by the following vote:

AYES: Councilmembers: Bass, Broadway, Gayaldo, Halldin
NOES: None
ABSENT: None
ABSTAIN: None

PASSED AND ADOPTED at a regular meeting of the City Council of the City of Rocklin held on June 9, 2026, by the following vote:

AYES: Councilmembers: Bass, Broadway, Gayaldo, Halldin, Janda
NOES: None
ABSENT: None
ABSTAIN: None